

20STCV10085 20STCV10085

County: los-angeles

Division: Civil Law and Motion

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Case Number: 20STCV10085 Hearing Date: June 23, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

MICHAEL F. WRIGHT, Individually and as Trustee of the Michael F.

Wright Individual Retirement Account and PRISCILLA H. WRIGHT, Individually and as Trustee of the Priscilla H.

Wright Individual Retirement Account

;

Plaintiffs,

vs.

George w. carroll

;

Defendant.

Case

No.:

20STCV10085

Hearing

Date:

June

23, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

Motion to compel further responses to

plaintiff's first set of special interrogatories; and request for sanctions

MOVING PARTY: Plaintiff Michael F. Wright

RESPONDING PARTY: Defendant George W. Carroll

Motion to Compel Further Responses to Plaintiff's First Set of Special

Interrogatories; and Request for Sanctions

The court

considered the moving, opposition, and reply papers filed in connection with

this motion.

DISCUSSION

1.

Motion to Compel Further Responses

“A motion under [Code of Civil Procedure section 2030.300] subdivision

(a) shall be accompanied by a meet and confer declaration under Section

2016.040.” (Code Civ. Proc., § 2030.300,

subd. (b)(1).) At the time Plaintiff Michael

F. Wright (“Plaintiff”) filed this motion, Code of Civil Procedure section

2016.040 provided that “[a] meet and confer declaration in support of a motion

shall state facts showing a reasonable and good faith attempt at an informal

resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040 (2025).)

Plaintiff’s motion does not comply with the requirement of Code of

Civil Procedure section 2030.300, subdivision (b)(1) because the declaration of

Rick Augustini does not state facts showing a reasonable and good faith attempt

at an informal resolution of each issue presented by Plaintiff’s motion. Mr. Augustini states that, on July 31, 2025,

he sent a meet and confer letter to Defendant George W. Carroll’s (“Defendant”)

counsel electronically. (Declaration of Rick

Augustini (“Augustini Decl.”), ¶ 2; Ex. G.)

In his letter, Mr. Augustini asserts that Defendant’s responses are

boilerplate objections or responses referring Plaintiff to “prior produced

documents” in bad faith and gave Defendant a five-day deadline to serve full

and complete code-compliant supplemental responses, otherwise he would prepare a motion to compel, seek sanctions against Defendant's counsel and Defendant, and file an ex parte application for an order appointing a discovery referee, foregoing or advancing the informal discovery conference, and or shortening time. (Augustini Decl., Ex. G.)

On August 1, 2025, Defendant's counsel replied in an email that he disagreed with Mr. Augustini's assertions/contentions in his letter but offered to meet and confer before August 13, 2025, to arrive at a compromise in order to avoid another discovery dispute and offered to extend the motion to compel deadline to accommodate the process.

(Augustini Decl., Ex. H.)

On August 1, 2025, Mr. Augustini refused to meet and confer, stood by his five-day deadline, or in the alternative, offered to extend the deadline "until next Friday [August 8] to stop the nonsense . . . : all you have to do is to agree in writing to provide full and complete code-compliant supplemental responses without objection, a privilege log and all responsive documents." (Augustini Decl., Ex. H.)

On August 4, 2025, Defendant's counsel offered to meet and confer again and, on the same day, Mr. Augustini asserted that if Defendant's counsel wanted to meet and confer, he needed to respond to his letter "with specifics and authorities. Otherwise we're done."

(Augustini Decl., Ex. H.)

On August 5, 2025, Defendant's counsel asserted that a meet and confer

letter outlining what Mr. Augustini believed to be deficiencies then demanding

supplemental responses on a timeframe that does not allow Defendant's counsel

to consider Plaintiff's counsel's positions and respond, and refusing to engage

in a telephonic discussion to come to a compromise is not proper. (Augustini Decl., Ex. H.) Defendant's counsel again offered to

telephonically meet and confer.

(Augustini Decl., Ex. H.)

On August 7, 2025, Mr. Augustini declined to telephonically meet and

confer. (Augustini Decl., Ex. H.)

Mr. Augustini's letter and his email correspondence with Defendant's

counsel does not show that he made a reasonable and good faith attempt at an

informal resolution of each issue presented by Plaintiff's motion because Mr.

Augustini sent one letter regarding the special interrogatories and expected

Defendant to agree to provide further responses without any discussion as to

the discovery at issue. In addition, a

five-day deadline to provide supplemental responses to 44 special

interrogatories is not reasonable.

In Mr. Augustini's declaration in support of Plaintiff's reply, he

tries to point out that he was willing to meet and confer to resolve any and

all outstanding discovery issues. (Reply,

Augustini Decl., Ex. E.) However, this

only occurred months after Plaintiff filed the instant motion and after Defendant's

counsel stated that "the Court, by way of its rulings, has strongly suggested

that we do so." (Reply, Augustini Decl.,

Ex. E.)

The court therefore finds that Plaintiff failed to comply with the

meet and confer requirement. Thus, the

court denies Plaintiff's motion to compel further responses to Plaintiff's

first set of special interrogatories.

2.

Request for Sanctions

Plaintiff requests monetary sanctions in the amount of \$6,037.00 against

Defendant and his attorneys of record, Neal S. Salisian, Marius Mateescu,

Gabriela Perez and Salisian Lee LLP, jointly and severally. The court denies Plaintiff's request for

sanctions because the court has denied Plaintiff's motion.

Defendant requests monetary sanctions in the amount of \$5,765.00

against Plaintiff and his counsel, jointly and severally, for their failure to

meet and confer in good faith, premature filing of the motion, and

manufacturing of a discovery dispute. Pursuant

to Code of Civil Procedure section 2023.010, subdivision (i), misuse of the discovery process includes “[f]ailing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.” (Code Civ. Proc., § 2023.010, subd. (i) (2025).) Because Plaintiff failed to meet and confer in a reasonable and good faith attempt to informally resolve the discovery disputes at issue, monetary sanctions are warranted. The court grants Defendant’s request for monetary sanctions in the amount of \$3,270.00 (6 hours at \$545.00 per hour for attorney’s fees) against Plaintiff and his attorney Rick Augustini, jointly and severally.

ORDER

The court denies plaintiff Michael F.

Wright’s motion to compel further responses to Plaintiff’s First Set of Special Interrogatories.

The court orders plaintiff Michael F. Wright and his attorney Rick Augustini, jointly and severally, to pay monetary sanctions in the amount of \$3,270.00 to defendant George W. Carroll within 30 days of the date of service of the order.

The court orders defendant George W. Carroll to give notice of this
ruling.

IT IS SO ORDERED.

DATED: June 23, 2026

Robert

B. Broadbelt III

Judge

of the Superior Court